

Assets and Means (Freeze, Control and Confiscation) of Criminal Offense Act, 2014

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Offence-related Property and Means (Freeze, Control and Confiscation) Act, 2070

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Amending Acts

1. Act Amending Some Nepal Acts relating to Good Governance Promotion and Public Service Delivery, 2081 2081.12.18
2. Act Amending Some Nepal Acts, 2082 2082.04.14

Act No. 3 of the year 2070

An Act Made to Provide for Freezing, Controlling and Confiscating Property Derived from Criminal Offences and Instrumentalities Related to Offences

Preamble: Whereas it is desirable to make timely the legal provisions relating to freezing, controlling and confiscating property derived from criminal offences and instrumentalities related to offences,

The Constituent Assembly, in its capacity as the Legislature-Parliament pursuant to Article 83 of the Interim Constitution of Nepal, 2063, has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Offence-related Property and Means (Freeze, Control and Confiscation) Act, 2070".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Court" means the District Court, Appellate Court and the Supreme Court, and the said term also denotes the body or official authorized by the prevailing law to conduct proceedings and adjudicate cases.

(b) "Investigation Officer" means the body or official appointed, designated or authorized by the prevailing law to investigate and inquire into an offence.

(c) "Offence" means a criminal offence in which the Government of Nepal is the plaintiff according to the prevailing law.

(d) "Property derived from an offence" means any type of property obtained or acquired directly or indirectly from any offence, and the said term also denotes other property or financial benefit accrued from such property.

(e) "Instrumentality related to an offence" means any means, property or equipment used or attempted to be used in any manner, partially or fully, to commit an offence.

- (f) "Fund" means the Offence-related Property Management Fund pursuant to section 22.
 - (g) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.
 - (h) "Innocent third party (bona fide third party)" means a person or body not involved in the offence.
 - (i) "Department" means the Offence-related Property Management Department pursuant to section 13.
 - (j) "Person" means a natural person or a legal person.
 - (k) "Property" means any type of property, whether tangible or intangible, movable or immovable, corporeal or incorporeal, or any valuable object or equipment, and the said term also denotes any type of document, deed, certificate or electronic or other instrument establishing a right, interest, claim or entitlement over it.
 - (l) "Property or means" means property derived from an offence or instrumentality related to an offence.
 - (m) "Committee" means the Fund Operation and Management Committee pursuant to section 25.
4. Freezing or Taking Control Required: (1) Notwithstanding anything contained in the prevailing law, an investigation officer may, in the course of investigation of an offence, immediately freeze or take control of property derived from an offence or an instrumentality related to an offence, or property or means for which there are reasonable grounds to suspect to be such, regardless of in whose name, possession, ownership or any type of right or interest it may be.
- (2) If the property or means referred to in subsection (1) cannot be frozen or taken control of due to being hidden, consumed, disposed of, or for any other reason, the investigation officer shall freeze or take control of other property of the person suspected of committing the offence that may be equivalent to the prevailing value of such property or means.
- (3) In relation to freezing or taking control of property or means pursuant to subsection (1) or (2), the investigation officer may do the following:-
- (a) Take control of such property or means himself or herself, or issue an order to take control through the concerned government body, or
 - (b) Issue an order to freeze such property or means ex parte without giving any notice to the concerned person, and send a letter to the concerned body.
- (4) Where a letter is sent to freeze property or means pursuant to clause (b) of subsection (3), the person, body or institution taking charge of or holding under control such property or means shall make arrangements that no one transfers, mortgages, pledges, sells, distributes, conducts any other transaction with, or takes benefit from such property or means.
- (5) If any property or means is frozen or taken control of under this section, the investigation officer shall give information thereof to the concerned person within three days.
- (6) If it appears that any person is attempting to create any contractual or other liability that would adversely affect the confiscation of property or means that may be confiscated pursuant to section 11, the investigation officer shall have the authority to initiate necessary proceedings to prevent such act or, if already done, to invalidate such act.
- (7) If an investigation officer takes control of or freezes property or means under this section, he or she shall submit a report thereof to the Court within seven days from the date of doing so.

(8) Upon receipt of a report pursuant to subsection (7), the Court may issue any other necessary and appropriate order in relation thereto. 5.

Duty to Deliver Property or Means Taken into Control: (1) Among the property or means taken into control in the course of investigation and inquiry of an offence, property or means other than those required to be presented to the Court as material evidence shall be delivered by the investigation officer of Kathmandu, Bhaktapur and Lalitpur districts to the Department, and by the investigation officer of other districts to the concerned District Administration Office, as soon as possible. (2) If ordered by the Court, property or means presented to the Court as material evidence shall also be delivered to the Department or the concerned District Administration Office. 6. **Duty to Deposit in Bank:** (1) If the property or means delivered pursuant to section 5 is foreign currency, exchange permit, or precious metal or article, the Department shall deposit it in the Nepal Rastra Bank, and the District Administration Office shall deposit it in a bank prescribed by the Department. (2) Where an account of any person is frozen in the course of investigation of an offence, the interest on the amount in such account and any other amount credited to that account shall be deposited by the concerned financial institution in the same account. 7. **Duty to Deposit in Deposit Account:** The following amounts accruing from cash, property or means taken into control in the course of investigation and inquiry of an offence shall be deposited by the Department or the concerned District Administration Office in a deposit account opened for that purpose:- (a) Amount received from the auction sale of such property or means pursuant to section 21 if it is liable to rust, break, perish, or suffer damage for any other reason, or (b) Amount received as income from such property or means, if any income is received therefrom. 8. **Duty to Keep Safely:** The Department or the concerned District Administration Office shall keep safely the property or means delivered by the investigation officer after taking control in the course of investigation and inquiry of an offence pursuant to section 5, and the records and documents relating thereto, until such property or means is auction sold or returned to the concerned owner. 9. **Duty to Send Details:** (1) The investigation officer shall send details of the property or means frozen or taken into control under section 4 in the course of investigation and inquiry of an offence, in the prescribed format, every month to the concerned District Administration Office.

Provided that the investigation officer of Kathmandu, Bhaktapur and Lalitpur districts shall send such details to the Department. (2) The District Administration Office shall send the details received under subsection (1), details of foreign currency, exchange permit, or precious metal or article deposited in the bank under section 6, and details of the amount deposited in the deposit account under section 7, to the Department as prescribed. 10. **Duty to Initiate Action for Mutual Legal Assistance:** (1) If information is received in the course of investigation and inquiry of an offence that property or means subject to an order for taking control or freezing under section 4 is located abroad, the investigation officer shall initiate necessary proceedings to obtain mutual legal assistance according to the prevailing law. (2) While initiating proceedings under subsection (1), the investigation officer shall specify the location of such property or means, its nature, value and other details available. (3) The investigation officer shall regularly provide to the Department details of the proceedings initiated under this section to obtain mutual legal assistance. **Chapter-3 Provisions Relating to Confiscation** 11. **Property or Means to be Confiscated:** (1) Notwithstanding anything contained in the prevailing law, property derived from an offence or an instrumentality related to an offence shall be confiscated, regardless of whether it is in the possession of the offender or any other person. (2) If the property or means referred to in subsection (1) cannot be confiscated due to being hidden, consumed, disposed of, the existence of a situation under clause (c) or (d) of subsection (2) of section 12, or for any other reason, other property of the offender equivalent to the prevailing value of such property or means shall be confiscated. (3) When confiscating property or means under this section, confiscation shall be made after

the order or judgment of the Court becomes final. 12.

Protection of Rights of Innocent Third Party: (1) Notwithstanding anything contained in subsection (1) of section 11, the Court shall protect the legal rights of an innocent third party. (2) For the protection of the legal rights of an innocent third party under subsection (1), the Court shall not confiscate property or means in the following circumstances:- (a) If such person is not found to be involved in the offence, (b) If any property or means is not found to be derived from an offence or related to an offence, (c) In respect of property or means given to someone before the offence occurred, if it is not found that such person had knowledge that the property or means could be used in the offence at the time of giving, (d) In respect of property or means acquired at the time of or after the offence, if such person is not found to be involved in the offence and it is not found that such person had knowledge, or there were reasonable grounds to have knowledge, that the property or means was derived from or related to the offence. (3) If it appears that in respect of any property or means already confiscated, a situation under subsection (2) exists and an innocent third party has a legal right, the Court shall cause such property or means to be returned to the concerned person. (4) If property or means that is ordered to be returned under subsection (3) is found to have been auction sold, the Court shall cause the amount received from the auction sale of such property or means to be returned to the concerned person. Chapter-4 Provisions Relating to Establishment of Department and its Functions, Duties and Powers

13. Establishment of Department: (1) The Government of Nepal shall establish an Offence-related Property Management Department to carry out functions relating to the management and auction sale of property derived from offences and instrumentalities related to offences. (2) The Government of Nepal shall appoint an officer of at least the first class of the Nepal Civil Service (gazetted) as the Director General to act as the head of the Department. (3) The organizational structure of the Department and the posts of employees required for the Department shall be as prescribed by the Government of Nepal. (4) Notwithstanding anything contained elsewhere in this section, until the establishment of the Department, the Government of Nepal may designate any other department or directorate to carry out the functions of the Department under this Act. 14.

Functions, Duties and Powers of Department: In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the Department shall be as follows:- (a) To manage or cause to manage property or means frozen or taken into control in the course of investigation and inquiry of an offence, (b) To make arrangements for keeping safely and systematically foreign currency, exchange permit, precious metal or article taken into control in the course of investigation and inquiry in the Nepal Rastra Bank or a bank designated by the Department, (c) To auction sell or cause to auction sell property or means taken into control in the course of investigation and inquiry of an offence under section 21, (d) To receive property or means confiscated pursuant to the order or judgment of the Court, (e) To manage property or means confiscated pursuant to the order or judgment of the Court, (f) To auction sell or cause to auction sell property or means confiscated pursuant to the order or judgment of the Court under Chapter-5, (g) To have the Fund audited, and (h) To carry out other functions as prescribed. 15. Provision Relating to Deposit Account: (1) For the purpose of section 7, the Department shall manage and operate or cause to manage and operate a deposit account as required. (2) If the judgment or order of the Court confiscating the amount deposited in the deposit account under subsection (1) becomes final, the Department shall cause such amount to be credited to the Fund. (3) The operation and other arrangements of the deposit account shall be as prescribed. 16. May Exchange Cooperation: (1) The Department may exchange cooperation on the basis of reciprocity with bodies of foreign countries performing similar functions. (2) The Department may, as necessary, conclude a mutual understanding with a body of a foreign country performing similar functions to determine the method, terms and procedure for exchanging cooperation under this section. (3) If a mutual understanding is concluded under subsection (2), the Department shall promptly give information thereof to

the Ministry of Foreign Affairs, Government of Nepal. Chapter-5 Provisions Relating to Auction Sale 17. Property or Means to be Auctioned: (1) After the judgment or order of the Court confiscating property or means becomes final, the Department or the concerned District Administration Office shall immediately auction sell or cause to auction sell such property or means under this Chapter.

Amended by the Act Amending Some Nepal Acts, 2082.(2) If the Court has rendered a judgment to recover a fine or any other amount from immovable property, and the concerned person pays the amount under such judgment in cash, such immovable property shall not be auctioned. Added by the Act Amending Some Nepal Acts relating to Good Governance Promotion and Public Service Delivery, 2081.(3) Notwithstanding anything contained in subsections (1) and (2), if due to the small area of the confiscated land it cannot be subdivided according to the prevailing law, or if such land cannot be put to use for public or governmental purposes, or if only a part of the land is confiscated and separating that part would cause damage or loss to other physical structures of the landowner or obstruct access, and if the landowner wishes to take such land by paying the value determined under section 18, such land may be released to him or her upon taking such value. Added by the Act Amending Some Nepal Acts, 2082.(4) Notwithstanding anything contained in subsection (1), if it appears that property or means ordered to be confiscated according to the order or judgment of the Court is not suitable for auction sale due to public interest, importance, security or any other reason, or if such property or means appears useful for governmental use, the Department shall send a letter to the concerned body to record such property or means in the name of the Government of Nepal without auctioning it. Added by the Act Amending Some Nepal Acts, 2082.(5) Upon receiving a letter pursuant to subsection (4), the concerned body shall record such means or property in the name of the Government of Nepal and give information thereof to the Department. 18.

Valuation of Property or Means: (1) Before auctioning property or means ordered to be confiscated by the Court, the Department or the concerned District Administration Office shall conduct a valuation of such property or means to determine its value. (2) For valuing property or means to be auctioned by the Department, there shall be a Valuation Committee as follows:- (a) Director General of the Department - Coordinator (b) Representative, Office of the Attorney General - Member (c) Representative, Public Procurement Monitoring Office - Member (d) Representative, Office of the Comptroller and Auditor General - Member (e) Chief of Accounts of the Department - Member Secretary (3) In the Valuation Committee under subsection (2), based on the nature of the property or means to be valued, a representative of the concerned body or institution shall be invited as a member. (4) For valuing property or means to be auctioned by the District Administration Office, there shall be a Valuation Committee in each district as follows:- (a) Chief District Officer - Coordinator (b) District Government Attorney - Member (c) Tahsildar, District Court - Member (d) Treasury and Accounts Controller - Member Secretary (5) In the Valuation Committee under subsection (4), based on the nature of the property or means to be valued, a representative of the concerned body or institution shall be invited as a member. (6) The Valuation Committee under subsection (2) or (4) may invite an expert of the relevant field to the meeting of the Valuation Committee when valuing the property or means to be auctioned. (7) The secretariat of the Valuation Committee under subsection (2) shall be at the Department, and the secretariat of the Valuation Committee under subsection (4) shall be at the Office of the Treasury and Accounts Controller of the concerned district. (8) Notwithstanding anything contained elsewhere in this section, the valuation of prescribed property or means that is immediately perishable shall be done by the Director General of the Department or the concerned Chief District Officer. 19.

Basis for Valuation of Property or Means: (1) While valuing property or means to be auctioned, valuation shall be done on the following bases, in order:- (a) On the basis of the price fixed or determined according to the

prevailing law, if so fixed or determined, (b) On the basis of the value mentioned on the property or means itself, if the value is mentioned, (c) On the basis of the bill or invoice of the property or means, if found, (d) In case of imported property or means, on the basis of the value mentioned in the declaration submitted to the customs office, (e) In case of property or means bought and sold in the market, on the basis of the local market price, (f) On other appropriate basis. (2) Notwithstanding anything contained in subsection (1), while valuing precious metals or articles such as gold and silver, and shares, to be auctioned, the valuation shall be done on the basis of the market price of the preceding day. (3) While valuing property or means under this section, if the property or means is of a type subject to depreciation according to the prevailing law, depreciation shall also be deducted. 20. Procedure Relating to Auction Sale of Property or Means: (1) After valuing property or means confiscated under this Act pursuant to section 18, the Department or the concerned District Administration Office shall auction sell such property or means publicly. (2) While auctioning property or means publicly under subsection (1), a notice of between seven days and thirty-five days shall be published in a national level newspaper, based on the nature and value of such property or means.

Provided that, when auctioning property or means under section 21, or when auctioning property or means with a value determined at less than fifty thousand rupees, the auction proceedings may be conducted by affixing notices at the District Administration Office, Treasury and Accounts Controller Office, concerned office, Chamber of Commerce and Industry, and Amended by the Act Amending Some Nepal Acts, 2062.the office of the local level.

(3) A person wishing to participate in an auction under subsection (2) shall deposit the prescribed amount in the deposit account designated by the Department or the concerned District Administration Office.

(4) When auctioning property or means, it shall be given to the person who bids the highest price, provided it is not less than the value determined under section 18.

(5) When auctioning property or means under subsection (4), the person accepting the auction shall be given a period of three days to thirty-five days, depending on the nature of the property or means, to take delivery of such property or means.

(6) If the highest bidder does not accept the auction or fails to accept the auction within the period given under subsection (5), his or her deposit shall be forfeited, and the auction shall be given to the next highest bidder, then the third, and so on as necessary.

(7) If no one accepts the auction even after conducting proceedings under subsections (2), (4), (5) or (6), such property or means shall be re-valued, and a notice shall be published giving a period of up to fifteen days twice at most for auction. Provided that, when publishing a notice for auction of a vehicle, a notice shall be published giving a period of twenty-one days each time.

(8) If property or means cannot be auctioned even after doing as per subsection (7), the Department or the concerned District Administration Office shall auction such property or means as scrap if it is metal, or by negotiation in an appropriate manner.

(9) When publishing a notice for auction of property or means under subsection (2) or (7), such notice shall also be published on the website of the Amended by the Act Amending Some Nepal Acts, 2062.Department and the District Administration Office. 21.

Special Provision Relating to Auction Sale: (1) Notwithstanding anything contained in section 17, if any

property or means taken into control under Chapter-2 in the course of investigation and inquiry of an offence is likely to rust, break, Deleted by the Act Amending Some Nepal Acts, 2062 perish, or suffer damage for any other reason while being kept, the Department or the concerned District Administration Office shall, after consulting the concerned government attorney if the offence-related case is still under investigation and inquiry, and with the permission of the Court if the case has already been presented in Court, auction such property or means before it is confiscated. (2) If any property or means presented before the Court as material evidence in an offence-related case appears likely to rust, break, Deleted by the Act Amending Some Nepal Acts, 2062 perish, or suffer damage for any other reason while being kept, the Court may order the auction of such property or means Added by the Act Amending Some Nepal Acts, 2062.or, if such property or means appears useful for government work, order reasonable maintenance and use thereof. Added by the Act Amending Some Nepal Acts, 2062.(2a) If any property taken into control under Chapter-2 in the course of investigation and inquiry of an offence, or presented before the Court as material evidence in an offence-related case, appears to be perishable, the Department or the concerned District Administration Office shall, with the permission of the concerned Court, immediately sell such property at the prevailing market price and give information thereof to the concerned government attorney or Court. Added by the Act Amending Some Nepal Acts, 2062.(2b) If such property cannot be sold under subsection (2a) and the concerned person wishes to take it by paying the prevailing market price, the prevailing market price of such perishable property shall be determined, and the concerned person shall be allowed to purchase it, and information thereof shall be given to the concerned government attorney or Court. (3) When the Department or the District Administration Office auctions property or means in the situation under subsection (1) or (2), the procedure under this Chapter shall be followed. (4) The Department or the District Administration Office shall provide to the concerned Court, within seven days of the Amended by the Act Amending Some Nepal Acts, 2062.acceptance of auction or sale at the prevailing market price, details of the amount received from the Amended by the Act Amending Some Nepal Acts, 2062.auction sale or sale at the prevailing market price of property or means under this section, and other details as prescribed. Chapter-6 Provisions Relating to Offence-related Property Management Fund 22.

Offence-related Property Management Fund: (1) There shall be an Offence-related Property Management Fund for the management of property or means frozen or taken into control under Chapter-2 and confiscated under Chapter-3. (2) The Fund under subsection (1) shall consist of the following properties:- (a) Property derived from an offence or instrumentality related to an offence confiscated pursuant to the judgment or order of the Court, (b) Amount received from auction sale, rental, or any other type of management of property or means under clause (a), (c) Amount in the deposit account confiscated by order of the Court, and (d) Amount received by the Government of Nepal from property confiscated abroad, if any. (3) The amount of the Fund shall be kept in an account opened in the Nepal Rastra Bank or any commercial bank. (4) The operation of the Fund account shall be done by the joint signature of the Director General and the Accounts Officer of the Department. 23. Accounts and Audit of Fund: (1) The accounts of the Fund shall be kept according to the prevailing law. (2) The audit of the Fund shall be done by the Auditor General. 24. Utilization of Fund: (1) The amount of the Fund shall be utilized as follows:- (a) To distribute, with the concerned country, the amount received from auction sale of property or means confiscated pursuant to the order or judgment of a foreign court, (b) To return, as prescribed, property deposited as security to the concerned person, (c) To return to the concerned person by order of the Court, (d) To deposit in the Consolidated Fund. (2) Notwithstanding anything contained in subsection (1), the Government of Nepal may utilize the amount in the Fund for legal reform, prevention, control, investigation, prosecution, adjudication of offences, and enhancement of the capacity and professional competence of personnel involved in related work. (3) Other provisions relating to

the utilization of the Fund amount shall be as prescribed. 25.

Fund Operation and Management Committee: (1) There shall be a Fund Operation and Management Committee as follows for the operation and management of the Fund:- (a) Secretary, Ministry of Finance - Coordinator (b) Joint Secretary, Ministry of Law, Justice and Parliamentary Affairs - Member (c) Joint Secretary, Ministry of Home Affairs - Member (d) Representative (First Class), Office of the Comptroller and Auditor General - Member (e) Director General, Department - Member-Secretary (2) The Committee may, if deemed necessary, invite domestic or foreign experts to participate as observers in its meetings. (3) The procedure relating to meetings of the Committee shall be as determined by the Committee itself. (4) The secretariat of the Committee shall be at the Department. 26. **Functions, Duties and Powers of Committee:** The functions, duties and powers of the Committee shall be as follows:- (a) To recommend to the Government of Nepal on policies to be adopted regarding freezing, taking control, and confiscating property derived from an offence or instrumentality related to an offence, (b) To recommend to the Government of Nepal for distribution of property received when property located abroad is confiscated by order of the Court, or when property located in Nepal is confiscated by order of a foreign court, (c) To make procedures and standards necessary for the operation and management of the Fund, and (d) To carry out other functions as prescribed. Added by the Act Amending Some Nepal Acts relating to Good Governance Promotion and Public Service Delivery, 2081.26a. **May Exercise Powers Equivalent to Those of a Court:** The Department may exercise powers equivalent to those of a Court in relation to the management and auction sale of property or means under this Act. Chapter-7 Miscellaneous 27.

Duty to Release Property or Means: (1) If property or means frozen or taken into control under Chapter-2 is not found to be property derived from an offence or an instrumentality related to an offence, or if an innocent third party is found to have a legal right over such property or means, and if a case regarding the offence has not been filed or will not be filed, the investigation officer shall, after consulting the government attorney, send a letter to the concerned body to release the property or means if frozen, and if taken into control, return it to the concerned person. (2) If a case relating to the offence has already been filed in Court, and it appears unnecessary to continue freezing or keeping control of such property or means, the Court shall release such property or means. (3) If property or means is released under subsection (1), the investigation officer of Kathmandu, Bhaktapur and Lalitpur districts shall immediately give details thereof to the Department, and the investigation officer of other districts shall immediately give details thereof to the concerned District Administration Office. (4) If property or means is released under subsection (2), the Court shall give information thereof to the concerned Government Attorney Office. (5) Upon receipt of details under subsection (3), the concerned District Administration Office, and upon receipt of details under subsection (4), the concerned Government Attorney Office, shall send details thereof to the Department. 28.

May Submit Petition: (1) If property or means is frozen or taken into control under Chapter-2 in the course of investigation and inquiry of an offence, a person affected thereby may submit a petition to the concerned Court for the release of such property or means. (2) If a petition is submitted under subsection (1), and if the frozen or controlled property or means appears to belong to the petitioner, and if the following circumstances exist, the Court may order the release of such frozen or controlled property or means:- (a) If the petitioner is not found to be involved in such offence, and (b) If there is no reasonable basis to suspect that such property or means is property derived from an offence or an instrumentality related to an offence. (3) If an order is made under subsection (2), and if the case relating to the offence has not been filed in Court, or if the property or means taken into control has already been delivered to the Department or the concerned District Administration Office under section 5, the investigation officer shall immediately release the frozen property

or means, and the property or means taken into control shall be returned to the concerned person. Provided that, if the property or means taken into control has already been delivered to the Department or the District Administration Office, the Department or the District Administration Office shall immediately return such property or means to the concerned person. 29. Distribution of Confiscated Property: The distribution of property or means located abroad that is ordered to be confiscated under this Act, and property or means located in Nepal that is ordered to be confiscated pursuant to the final decision of a competent court of any country, shall be according to the agreement concluded between the Government of Nepal and the concerned country. Provided that, in the absence of such agreement, it shall be as prescribed by the Government of Nepal. 30.

May Provide Minimum Expenses: (1) If, during the investigation and inquiry of an offence or the conduct of a case, the entire property of a person is frozen or taken into control under this Act, and there is no other means or source for the livelihood of that person and his or her dependents, the Court may order the release of the minimum property necessary for the humane living of that person and his or her dependents, or to provide such person with the minimum property necessary for livelihood from among the frozen or controlled property. (2) If an order under subsection (1) is made, the following shall be done:- (a) If the case relating to the offence has not been filed in Court, the investigation officer shall release property or means from the frozen property as per the Court order. (b) If the investigation officer has already delivered the property taken into control to the Department or the District Administration Office under section 5, the Department or the concerned District Administration Office shall return the property or means as per the Court order; if not yet delivered, the investigation officer shall do so. (c) If the property or means taken into control has been auctioned under section 21 and the amount received therefrom deposited in the deposit account, or if foreign currency, exchange permit, or precious metal or article has been deposited in the bank, the Department or the concerned District Administration Office shall return the property as per the Court order. 31. May Make Appropriate Management of Property or Means: (1) If it appears that income is or may be derived from property or means frozen or taken into control in the course of investigation and inquiry of an offence, the Department may manage or cause to manage such property or means in an appropriate manner. (2) For the purpose of subsection (1), the Department may rent out, lease out, cultivate, or put such property or means to income-generating activities as prescribed. (3) Other provisions relating to the management of frozen or controlled property or means shall be as prescribed. 32. Duty to Provide Assistance: (1) In the course of work relating to the freezing or control of property derived from an offence or instrumentality related to an offence, the investigation officer may, as necessary, seek the assistance of the local administration and police. (2) Upon a request for assistance under subsection (1), it shall be the duty of the concerned local